

STATE OF NEW YORK

10559--A

IN SENATE

May 21, 2026

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Commerce, Economic Development and Small Business -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to an exemption for certain property from the prohibition of alcohol sales within a certain distance of a school or place of worship

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 7 of section 64 of the alcoholic beverage control law is amended by adding a new paragraph (e-18) to read as follows:

(e-18) Notwithstanding the provisions of paragraph (a) of this subdivision, the authority may issue a retail license for on-premises consumption for a premises which shall be located within two hundred feet of a building occupied as a school, church, synagogue or other place of worship, provided such premises constitute a premises for the sale of food or beverages at retail for consumption on the premises located wholly within the boundaries of the county of Manhattan, bounded and described as follows:

AS TO THE FEE PARCEL:

ALL that certain plot, piece or parcel of land, situate, lying and being in the Borough of Manhattan, County, City and State of New York, bounded and described as follows:

BEGINNING at the corner formed by the intersection of the Easterly side of Greenwich Street with the Southerly side of Thames Street;

RUNNING THENCE Easterly along the Southerly side of Thames Street, 119 feet 3-1/2 inches to the ground now or late belonging to James Walker and formerly leased to E. Devoe and M. Williams;

THENCE Southerly along the same, 79 feet 8 inches to the Southerly line of land conveyed by the Rector, Church Wardens and Vestrymen of the Protestant Episcopal Church of St. Stephens of the City of New York to The Hamilton Building Company by Deed dated February 1, 1907 and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD15941-02-6

1 recorded February 4, 1907 in Liber 110 Cp 42 Sec. 1 in the Office of the
2 Register of the County of New York;

3 THENCE Westerly along the same, 106 feet 10 inches, more or less
4 (deed) 107.01 feet (actual) to the Easterly side of Greenwich Street;
5 and

6 THENCE Northerly along the said Easterly side of Greenwich Street, 82
7 feet 7 inches to the point or place of BEGINNING.

8 AS TO THE EASEMENT PARCEL:

9 Easements, for the benefits of Fee Parcel, over the parcel of land
10 described below, for light and air, and unobstructed view, above a lower
11 limiting plane at an elevation of 129.38 feet above Datum Level (such
12 Datum Level 2.75 feet above the United States Coast and Geodetic Survey
13 Datum, mean sea level, Sandy Hook, New Jersey), as described in (and
14 subject to the terms and conditions of) (i) Section 2(c) of that certain
15 Zoning Lot Development and Easement Agreement dated September 7, 2012,
16 between 86 Trinity Place LLC, as Owner, and 22 Thames Street LLC, as
17 Developer, recorded 10/9/12 in CRFN 2012000398746 in the Office of the
18 City Register of the City of New York and (ii) that certain Light and
19 Air Easement Agreement dated September 7, 2012, between 86 Trinity Place
20 LLC, as Grantor, and Henry II Thames LP, as Grantee, recorded 10/9/12 in
21 CRFN 2012000398750 in the Office of the City Register of the City of New
22 York.

23 ALL that certain plot, piece or parcel of land, situate, lying and
24 being in the Borough of Manhattan, County, City and State of New York,
25 bounded and described as follows:

26 BEGINNING at a point on the Easterly side of Greenwich Street, distant
27 82 feet 8 inches Southerly from the corner formed by the intersection of
28 the Easterly side of Greenwich Street with the Southerly side of

29 Thames Street;

30 RUNNING THENCE Southerly along the Easterly side of Greenwich Street,
31 178 feet 2 inches to the Northerly face of the Northerly wall of the
32 building erected on the premises adjoining on the South;

33 THENCE Easterly along the Northerly face of the Northerly wall of the
34 building on the premises adjoining on the South and on a line in contin-
35 uation thereof, 107 feet 1-1/4 inches;

36 THENCE Northwesterly on a line forming an angle in the Northwest quad-
37 rant of 84 degrees 12 minutes 20 seconds with the last mentioned course,
38 47 feet 8-1/4 inches to the centre of a party wall;

39 THENCE Easterly along the centre of said party wall, 52 feet 2-1/2
40 inches to the Westerly side of Trinity Place;

41 THENCE Northerly along the Westerly side of Trinity Place, 124 feet
42 7-3/4 inches to the Southerly face of the Southerly wall of the building
43 erected on the premises adjoining on the North;

44 THENCE Westerly along the Southerly face of said wall and on a line
45 drawn in the continuation thereof, 74 feet 5 inches;

46 THENCE Northerly, 4 inches;

47 THENCE Westerly and partly along the Southerly face of the Southerly
48 wall of the building adjoining on the North, 107 feet 1-3/4 inches to
49 the point or place of BEGINNING.

50 § 2. This act shall take effect immediately.